EMERGENCY VEHICLE EQUIPMENT REPAIR PROGRAM
Please call our claims hotline @ 888-318-3472, immediately upon noticing any unusual mechanical issues concerning the vehicle listed below.
SUBMIT THIS IMMEDIATELY VIA: VITAL TRENDS DEALER PORTAL

I. CUSTOMER INFORMATION

AGREEMENT DATE:

NAME:

EMAIL: PH#:

ADDRESS:

CITY: STATE/PROVINCE: ZIP/POSTAL CODE:

II. VEHICLE INFORMATION

FULL VIN:

VEHICLE TYPE: ○ Type 1 ○ Type 2 ○ Type 3 ○ Type 4-AARF ○ Type 5-POWERSPORTS

VEHICLE YEAR: MAKE: MODEL:

ENGINE MAKE: MODEL: SERIAL#:

TRANSMISSION MAKE: MODEL: SERIAL#:

ODO. READING: *ECM READING: ***ENGINE HOURS**:

(please select) MILES ○ KM ○ *(please select)* MILES ○ KM ○ **if applicable*

III. COMPONENT COVERAGE: See page 2 section A. for details.

○ TIER 1: SQUAD OR ○ TIER 2: BATTALION (includes SQUAD Coverage)

- ○ YES OR ○ NO - Apparatus Equipment Package
- ○ YES OR ○ NO - Aerial Equipment Package
- ○ YES OR ○ NO - Electrical Vehicle Battery
- ○ YES OR ○ NO - Wearables Package
- ○ YES OR ○ NO - Enhanced Engine Package

IV. COVERAGE TERM: The agreement period begins on the Agreement Date listed above and expires when the time selected has ended. All contracts have unlimited mileage and unlimited engine hours.

○ YES OR ○ NO - WRAP Option (Only for Type 3 & 4 for 1-4 Year Term)

○ 6 Months ○ 2 Years ○ 4 Years ○ 6 Years ○ 8 Years ○ 10 Years

○ 12 Months ○ 3 Years ○ 5 Years ○ 7 Years ○ 9 Years

V. RETAILER INFORMATION AR#: PO#:

RETAILER NAME: PH#:

STREET ADDRESS:

CITY: STATE/PROVINCE: ZIP/POSTAL CODE:

VI. LIEN HOLDER INFORMATION (if applicable)

LIEN HOLDER NAME: PH#:

STREET ADDRESS:

CITY: STATE/PROVINCE: ZIP/POSTAL CODE:

VII. I UNDERSTAND: This agreement cannot be modified or altered without approval by the Authorized Administrator. As the authorized retailer, I certify that I have reviewed this document with the customer and will provide the customer with a copy of this agreement that I have executed on their behalf. By entering into this Agreement, the customer, dealer, and/or broker verify that the vehicle is in good working condition and there are no fault codes, malfunction indicator lights (MIL), maintenance lights, check engine lights (CEL), abnormal noises, leaks, seeps, or build- up on the equipment's applicable systems. This includes but is not limited to engine, transmission, differential, turbocharger, aftertreatment, hydraulic, and vibrator components.

AUTHORIZED RETAILER SIGNATURE DATE AUTHORIZED RETAILER NAME (printed)

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VIII. SCHEDULE OF COVERAGE: EQUIPMENT REPAIR PROGRAM AGREEMENT TERMS AND CONDITIONS

A. COVERAGE

1. **TIER 1: SQUAD COVERAGE**: Under this Equipment Repair Program when selecting the **SQUAD COVERAGE ONLY** includes the COVERED COMPONENTS listed in this Section:

i) ENGINE: Internally lubricated parts limited to bearings, cam followers, camshaft and cam bearings, connecting rods, connecting rod bearings, constant velocity valve, crankshaft, hydraulic lifters, intake and exhaust valves and valve guides, main thrust washers, oil pan and oil pan gasket, oil cooler and housing, oil pump, oil pump housing and gears, oil pump pick up screen, tube, and tube seal, oil pump pressure relief springs and valves, oil pressure sending unit, pistons, piston rings, piston oil cooling jets, pushrods, radiator, rocker arms, rocker arm shafts, timing chain and gears, timing chain tensioners, timing gear cover and timing gear case seal, valve keepers (locks), valve retainers, valve springs, valve cover and valve cover gasket, and wrist pins. The following related components are covered: exhaust manifold; flywheel housing and gasket; front crank seal, front housing gasket, intake manifold (includes gasket), rear main seal; thermostat and housing; and vibration dampener. The engine block, alternator, cylinder liners, cylinder heads, cylinder liner seal, and head gasket, are covered if damaged by a covered component or wear-out failure showing no neglect or fault of operation; no progressive damage.

ii) HYBRID/ALTERNATIVE COMPONENTS: The Authorized Administrator may approve the use of certain OEM and non-OEM add-on components and systems designed to extend oil change intervals; deliver alternative fuels such as CNG, LNG, and others; reduce fuel consumption or reduce component heat, wear, and failure (Extra Components). The Extra Components are not automatically covered by this Agreement. Any initial failure and progressive damage of any kind traced to the use of unapproved or approved Extra Components will not be covered by this Agreement and are the responsibility of the Customer. Extra Components use will not void this Agreement, as long as their use is approved, in writing, by the Authorized Administrator prior to the approval of this Agreement.

iii) APPLICABLE FLUIDS, PARTS, TAXES AND LABOR. Up to $300 in shop supplies covered per claim occurrence.

iv) TRANSMISSION: Internally lubricated parts of the manual or automatic transmission limited to bands, bearings, blockers, bushings, drums, gear sets, governor, oil pump, shaft(s), input shaft, power take-off, shift forks, synchronizers, thrust washers, torque converter, valve body and XY shifter. The transmission case is covered only if damaged by a covered component. Clutch covered if failed; parts only and up to $1,500 USD in labor within the agreement term and no progressive damage.

v) DIFFERENTIALS: Internally lubricated parts limited to axle shafts, bearings, bushings, carrier case, gear sets, limited slip clutch pack, as well as power divider: bearings, gears, shafts, and shift fork. The differential housing is covered only if damaged by a covered component.

vi) TURBO PACKAGE: TURBOCHARGER(S) includes bearings, internal variable vane assembly, turbines, turbine shaft, turbo actuator, turbocharger housing, and turbo oil return seal; charge air cooler. FUEL PUMP(S); fuel injector hard lines, fuel lift pump, fuel transfer pump, fuel injection pump, intake manifold, governor, and fuel tank. ENGINE FUEL INJECTORS: includes failed injectors and failed injector cups. Parts only coverage for fuel injector tubes and seals. WATER PUMP includes bearings, housing, impeller, seals, and water manifold; no progressive damage is covered.

vii) AFTERTREATMENT SYSTEMS: [[Progressive damage limited to aftertreatment system] DIESEL PARTICULATE FILTER (DPF): The DPF filter only is covered (must have required OEM Maintenance). EXHAUST GAS RECIRCULATION (EGR) VALVE(S): The EGR Valve(s), EGR actuator, cooler(s), and cooler lines are covered. DOSER VALVE: Covered parts include cylinder valve, elbow, fitting, o-rings, pludge, transducer, and tube. SELECTIVE CATALYTIC REDUCTION (SCR): Covered parts include catalyst, connectors to doser, and injection system; DOC, DEF, and BPV Systems; and One Box componentry. Catalytic converter; muffler; exhaust pipes; and air injector reactor pump (smog pump).

viii) BODY AND BOLT ON PACKAGE: BODY: Limited to plow: motor, control, switch/leaver, and hydraulic system; siren & horn. BOLT-ON: power winch: motor, roller, controller, and wire harness.

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ix) ELECTRICAL: [Initially failed component; no progressive damage] Shore power kit and power inverter; light bars; LED headlamp; LED fog lamp; LED spot lamp; LED tail lamp; LED warning/flashing lamps; LED running lamps; LED stop lamp; LED flood lamp; LED turn signals; light tower; and electronic control module (ECM). MANUAL SWITCHES: Light bar switch and relay; beacon lamp switch; warning lamp switch; headlamp leveling switch; headlamp flasher switch; stop lamp switch; headlamp switch; emergency disability switch; backup lamp switch; backup alarm switch; flash control switch; turn signal warning switch; turn signal operating switch; work lamp switch; and strobe light switch. WIRING HARNESSES: Engine wiring harness; light bar wiring harness; light bar module; beacon lamp wiring harness; strobe lamp wiring harness; headlamp switch wiring harness; driving lamp wiring harness; spot lamp wiring harness; headlamp/flasher wiring harness; fog lamp wiring harness; stop/tail/turn/backup lamp wiring harness. SENSORS: Aftertreatment: Exhaust oxygen (O2) sensor; exhaust temperature sensor; EGR pressure sensor; EGR position sensor; exhaust back pressure sensor; centrifugal crankcase oil separator (CCOSS) sensor; delta P sensor; back pressure valve temperature sensor; back pressure valve pressure sensor; nitrogen oxide (NOX) sensor; EGR monitor sensor; CGI cooler combustion air delta sensor; clean gas induction (CGI) cooler pressure sensor; clean gas induction (CGI) cooler temperature sensor; exhaust gas temperature sensor; exhaust aftertreatment particulate trap differential pressure sensor; doser valve pressure sensor; diesel oxidation catalyst (DOC) gas temperature sensor; ASM sensor; exhaust aftertreatment fuel control module sensor; exhaust aftertreatment pressure sensor; diesel oxidation catalyst (DOC) pressure sensor; aftertreatment regeneration flame detection temperature sensor; diesel particulate filter ammonia sensor; particulate soot sensor; catalytic converter temperature sensor; upstream DPF temperature sensor; DEF tank fill level sensor; metering device pressure sensor; metering device temperature sensor; metering device compressed air pressure sensor; input exhaust gas sensor; output exhaust gas pressure sensor; diesel exhaust system nitrogen oxide (NOX) sensor; catalytic reduction actuator (upstream) temperature sensor; catalytic reduction actuator (downstream) temperature sensor; catalytic reduction actuator temperature/fill level sensor; catalytic reduction actuator temperature/moisture sensor; selective catalytic reduction air intake humidity sensor; diesel exhaust fluid (DEF) temperature sensor; diesel exhaust fluid (DEF) quality sensor; exhaust soot sensor; compensation sensor; burner flame temperature sensor; catalytic converter (upstream) NOX sensor; catalytic converter (downstream) NOX sensor; SCR system inlet/outlet; and temperature sensors.

2. **TIER 2 BATTALION** (ONLY Covered if purchased; includes SQUAD Coverage plus ALL OF YOUR VEHICLE'S ORIGINAL FACTORY EQUIPPED MECHANICAL AND ELECTRICAL PARTS, EXCEPT those excluded by the TERMS AND CONDITIONS of Section K and the following BATTALION COVERAGE EXCLUSIONS (i.e., the following Subsections are NOT COVERED):

i) ENGINE: The engine block, cylinder liners, cylinder heads, cylinder liner seal, and head gasket, are covered if damaged by a covered component or wear-out failure showing no neglect or fault of operation; no progressive damage.

ii) DRIVETRAIN: Cable Pedal and Linkage; Differential Housing; Driveshaft Center Bearing; Driveshaft Yoke; Flex disc; Hydraulic Clutch Master; Intermediate Shaft Pitman Arm; Idler Arm; Mechatronic Transmission Module (MTM); Pressure Plates; Tie Rods and Ends; Shift Levers; Slave Cylinder(s); Sliding Clutch(es); Throw Out or Pilot Bearing; Transmission Housing; Transmission Flex Plat; Transmission Mounts; Throttle Body; Steering Column Shaft; Steering Couplings; Steering Bearings; and U-Joints.

iii) MISCELLANEOUS: Actuators; Air Compressor; Bolts; Charge Air Cooler; Clamps; Connectors; Duct Work; Exhaust Piping; External Oil Coolers; External Lines; Fittings; Fasteners; Injectors Seals; Injector Tubes; Jake Brakes; Linkages; Mounts; Air, Coolant, Oil, or Fuel Lines; O-Rings; Reservoir Tank; Seals and Gaskets; Surge Tank; Thermostat; Tubes; Vacuum Controls; VPod; Waste Gates; and Wiring.

iv) EXTERIOR: Brake Rotors and Drums; Exhaust Piping; Frame and Structural Body Parts; Glass; Windows; Mirrors; Windshields; Body Panels; Trims; Moldings; Paint; Bumpers; Body Sheet Metal and Panels; and Wheels/Rims.

v) INTERIOR: Seats; Safety Restraint Systems (including Air Bags, Sensors, Actuators, Seatbelts and Tensioners); Mirrors; Upholstery; Headliner; and Carpet.

vi) OTHER/MAINTENANCE: Headphones; Light Bulbs; Fuses; any type of Internal Software Updates or other failures; Maintenance services and parts described in Your Vehicle's Owner Manual as supplied by the manufacturer and other normal maintenance service and parts which include, but are not limited to: Alignments; Wheel Balancing; Tune-Ups; Spark Plugs; Spark Plug Wires; Coil to Spark Plug Boots and Connectors; Brake Pads; Brake Lining/Shoes; Retainers and Wiper Blades. Filters, Lubricants, Coolants, Fluids and Refrigerants will be covered only if replacement is required in conjunction with an authorized repair.

3. **WRAP OPTION**: (ONLY Covered if purchased; Only available on Type 3 and 4 vehicles) ALL OF YOUR VEHICLE'S ORIGINAL FACTORY EQUIPPED MECHANICAL AND ELECTRICAL PARTS, EXCEPT those excluded by the TERMS AND CONDITIONS of Section K and the following BATTALION COVERAGE EXCLUSIONS (i.e., the following Subsections are NOT COVERED):

i) ENGINE: Including internal components.

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ii) TRANSMISSION: Including internal components.

iii) DIFFERENTIAL: Including internal components.

iv) DRIVETRAIN: Cable Pedal and Linkage; Differential Housing; Driveshaft Center Bearing; Driveshaft Yoke; Flex disc; Hydraulic Clutch Master; Intermediate Shaft Pitman Arm; Idler Arm; Mechatronic Transmission Module (MTM); Pressure Plates; Tie Rods and Ends; Shift Levers; Slave Cylinder(s); Sliding Clutch(es); Throw Out or Pilot Bearing; Transmission Housing; Transmission Flex Plat; Transmission Mounts; Throttle Body; Steering Column Shaft; Steering Couplings; Steering Bearings; and U-Joints.

v) MISCELLANEOUS: Actuators; Air Compressor; Bolts; Charge Air Cooler; Clamps; Connectors; Duct Work; Electronic Control Devices; Exhaust Piping; External Oil Coolers; External Lines; Fittings; Fasteners; Injectors Seals; Injector Tubes; Jake Brakes; Linkages; Mounts; Air, Coolant, Oil, or Fuel Lines; O-Rings; Reservoir Tank; Seals and Gaskets; Surge Tank; Thermostat; Tubes; Vacuum Controls; VPod; Waste Gates; and Wiring.

vi) EXTERIOR: Brake Rotors and Drums; Exhaust Piping; Frame and Structural Body Parts; Glass; Windows; Mirrors; Windshields; Body Panels; Trims; Moldings; Paint; Bumpers; Body Sheet Metal and Panels; and Wheels/Rims.

vii) INTERIOR: Seats; Safety Restraint Systems (including Air Bags, Sensors, Actuators, Seatbelts and Tensioners); Mirrors; Upholstery; Headliner; and Carpet.

viii) OTHER/MAINTENANCE: Headphones; Light Bulbs; Fuses; any type of Internal Software Updates or other failures; Maintenance services and parts described in Your Vehicle's Owner Manual as supplied by the manufacturer and other normal maintenance service and parts which include, but are not limited to: Alignments; Wheel Balancing; Tune-Ups; Spark Plugs; Spark Plug Wires; Coil to Spark Plug Boots and Connectors; Brake Pads; Brake Lining/Shoes; Retainers and Wiper Blades. Filters, Lubricants, Coolants, Fluids and Refrigerants will be covered only if replacement is required in conjunction with an authorized repair.

ix) HYBRID/ALTERNATIVE COMPONENTS: The Authorized Administrator may approve the use of certain OEM and non-OEM add-on components and systems designed to extend oil change intervals; deliver alternative fuels such as CNG, LNG, and others; reduce fuel consumption or reduce component heat, wear, and failure (Extra Components). The Extra Components are not automatically covered by this Agreement. Any initial failure and progressive damage of any kind traced to the use of unapproved or approved Extra Components will not be covered by this Agreement and are the responsibility of the Customer. Extra Components use will not void this Agreement, as long as their use is approved, in writing, by the Authorized Administrator prior to the approval of this Agreement.

x) APPLICABLE FLUIDS, PARTS, TAXES AND LABOR. Up to $300 in shop supplies covered per claim occurrence.

4. VEHICLE SURCHARGE EQUIPMENT OPTIONS:

i) APPARATUS EQUIPMENT OPTION: (Only covered if selected on the application/declaration page.) Circulator pump(s); hydraulic pump(s); water control panel(s); water supply pump(s); fire suppression foam pump, controls & pump panels; multiplexed electrical system; stretcher power load system; hydraulic rams; slide outs: bearing; air compressor; generator. This coverage will accommodate an increase of $35,000 in the total aggregate Limit of Liability of this agreement.

ii) AERIAL PACKAGE OPTION: (Only covered if selected on the application/declaration page.) Aerial ladder controls; turret hydraulics; remote nozzles; remote nozzle controls; turntable; boom, hydraulics, and control components. Internal component failure only. The turret housing is covered only if damaged by a covered component. Seals, gaskets and/or hoses are not covered. This coverage will accommodate an increase of $35,000 in the total aggregate Limit of Liability of this agreement.

iii) Enhanced Engine Coverage (Only covered if selected on the application/declaration page.) If the enhanced engine coverage has been selected on the application/declaration page, the coverage will accommodate an increase of $50,000 in the total aggregate Limit of Liability of the Agreement.

iv) Electric Vehicle Battery Coverage: (Only covered if selected on the application/declaration page.) The coverage will extend to include high-voltage vehicle drive batteries. Battery coverage is available when the battery degrades beyond 80% capacity during the agreement period. This coverage will accommodate an increase of $50,000 in the total aggregate Limit of Liability of this agreement.

V) Wearables Package (Belts, Hoses, Seals, Gaskets): (Only covered if selected on the application/declaration page.) Coverage extends to belts, hoses, seals & gaskets for the covered vehicle. Includes coverage for exhaust manifold gasket. Seepage & Leakage also covered.

i. If any surcharge options have been selected on the application/declarations page AND the Wearables package has been selected on the application/declaration page, belts, hoses, seals, and gaskets coverage will be extended to the additional covered parts.

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B. **AGREEMENT PERIOD:** The term of this Agreement is based on the time selected on page 1, section IV. The term begins on the Agreement Date on page 1, section I and expires when its time limit is reached. This Agreement may be transferred ONLY to another municipality or emergency response company, one time, with an approved Inspection and ECM printout, completed Transfer Request Form, and paid fee to the Authorized Administrator, (additional paperwork may be required). For transfer questions, contact Customer Service at **(888) 318-3472.**

C. **LIMITS OF LIABILITY:** If the initial cause of the failure is traced to any reviewable component, the initial component, and any progressive damage repair costs will be counted against the vehicle's Total Aggregate Limit. **All prices listed in USD.**

VEHICLE TYPE

TYPE 1 – TOTAL AGGREGATE LIMIT OF LIABILITY

Squad	
6/12 Month	- $25,000
2-10 Years	- $50,000
Battalion	
6/12 Month	- $35,000
2-10 Years	- $70,000

TYPE 2 – TOTAL AGGREGATE LIMIT OF LIABILITY

Squad	
6/12 Month	- $37,000
2-10 Years	- $75,000
Battalion	
6/12 Month	- $50,000
2-10 Years	- $102,500

TYPE 3 – TOTAL AGGREGATE LIMIT OF LIABILITY

Squad	
6/12 Month	- $62,000
2-10 Years	- $125,000
Battalion	
6/12 Month	- $80,000
2-10 Years	- $157,500
Wrap	
1-4 Years	-$92,500

TYPE 4 – TOTAL AGGREGATE LIMIT OF LIABILITY

Squad	
6/12 Month	- $80,600
2-10 Years	- $162,500
Battalion	
6/12 Month	- $104,000
2-10 Years	- $204,750
Wrap	
1-4 Years	-$120,250

TYPE 5 – TOTAL AGGREGATE LIMIT OF LIABILITY

Squad	
6/12 Month	- $7,500
2-10 Years	- $10,000
Battalion	
6/12 Month	- $12,500
2-10 Years	- $20,000

VEHICLE SURCHARGE EQUIPMENT OPTIONS

APPARATUS EQUIPMENT PACKAGE
TOTAL AGGREGATE LIMIT OF LIABILITY
Squad or Battalion Level
Adds $35,000

AERIAL PACKAGE
TOTAL AGGREGATE LIMIT OF LIABILITY
Squad or Battalion Level
Adds $35,000

ENHANCED ENGINE COVERAGE
TOTAL AGGREGATE LIMIT OF LIABILITY
Squad or Battalion Level
Adds $50,000

ELECTRIC VEHICLE BATTERY COVERAGE
TOTAL AGGREGATE LIMIT OF LIABILITY
Squad or Battalion Level
Adds $50,000

WEARABLES PACKAGE
TOTAL AGGREGATE LIMIT OF LIABILITY
Squad or Battalion Level
Does not increase Total Aggregate Limit of Liability

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D. **THIS PROGRAM HAS ZERO STANDARD DEDUCTIBLE PER COVERED CLAIM OCCURRENCE.**

E. **TOWING OR MOBILE MECHANIC MILEAGE REIMBURSEMENT:** Reimbursement will be calculated to the Original Equipment Manufacturer (OEM) dealer or certified repair facility, whichever is nearest to the breakdown origin. If you have requested towing reimbursement in conjunction with a covered repair, towing reimbursement is only available on approved claims.

1. There is a max payout of UP TO $1,500 USD limit per covered occurrence and a limit of three (3) occurrences per agreement term.
2. If the Aerial Package or a Type 4 ARFF vehicle has been selected on the applications/declarations page, there is a max payout of UP TO $2,500 USD limit per covered occurrence and a limit of three (3) occurrences per agreement term.

F. **THIS SECTION DOES NOT APPLY TO THIS EQUIPMENT REPAIR PROGRAM**

G. **REQUIRED MAINTENANCE:** Required Maintenance begins on the Agreement Date and continues until all component coverage expires. Authorized Administrator has the right to deny coverage if the required maintenance is not performed according to these requirements. (OEM extended intervals honored only if OEM Standards are adhered to and approved by Authorized Administrator at inception of this Equipment Repair Program). Maintenance and cleaning are not covered by Authorized Administrator.

1. Customer must have services completed by an OEM dealership or a licensed service facility.
2. Customer must keep ALL receipts and work orders that verify the services performed. Logs or receipts that are handwritten and CANNOT be verified by the service facility ARE NOT accepted. These receipts must include: correct Vehicle Identification Number (VIN), the miles/KM/hours at time of service, and date of service.
3. Emergency Vehicle requires the engine oil and filters be maintained and/or replaced according to OEM specifications or within 1 year/10,000 miles (whichever occurs first) by a licensed service facility or qualified EVT certified service technician. Additionally, the vehicle and associated components must be maintained in accordance with the NFPA (National Fire Protection Association) standards.
4. Transmission and Differential fluids must be maintained and/or replaced according to OEM specifications or yearly (whichever occurs first) by a licensed service facility or qualified EVT certified service technician.
5. Aftertreatment Systems must be maintained to OEM specifications by a licensed service facility or qualified EVT certified service technician to validate any claim for these components.
6. The vehicle's odometer and ECM must be maintained and in proper working condition. Documentation of odometer and ECM changes must be submitted to Authorized Administrator.
7. Aerial & Apparatus Equipment components must be maintained to OEM specifications and NFPA standards in order to validate any claim for these components.

H. **CLAIM PROCEDURE AND BREAKDOWN RESPONSIBILITIES:** "Breakdown" means the failure of any original or replacement part covered by this Agreement originally designed to work in normal service with proper maintenance as recommended by the OEM and mandated by this Agreement. A component will be deemed "failed" or "wear-out failure" when wear exceeds the OEM's tolerable limits. Authorized Administrator will pay for parts and labor necessary to repair or replace the approved covered parts. The price of replacement parts shall not exceed the OEM's suggested retail price for parts. Replacement parts will be the same quality as the covered parts and may include new, remanufactured, or used parts with the Authorized Administrator's approval. Labor allowances are derived from the nationally recognized labor time schedules.

1. If breakdown occurs, please call Authorized Administrator Claims immediately at (888) 318-3472 - 24 hours a day/7 days a week, email: **Claims@vitaltrendsusa.com**, or or click the claims tab on the Vital Trends website, www.vitaltrendsusa.com, to start a claim. Customer must have services completed by an OEM dealership or licensed service facility.
2. **Customer must obtain authorization from Authorized Administrator prior to beginning any covered repairs**. An authorization cannot be made until all diagnostic information is received. Service center/Repair facility has 10 business days once authorization is made to complete repairs. If repairs are not completed after 10 business days, Authorized Administrator reserves the right to revoke authorization. In the event that repairs are projected to take longer than the initial 10-day timeframe, the repair facility must communicate the additional time constraint with the Authorized Administrator. Please contact Authorized Administrator at 888-318-3472 for a claim extension request.
3. Customer must authorize the service center/repair facility to perform necessary diagnostic work. Customer will be responsible for the costs of diagnostics if the breakdown is not covered.
4. Customer must provide all information as Authorized Administrator requests and provide proof of vehicle's regular maintenance as required in this Agreement (See G. Required Maintenance) within five (5) days from the day of request. Documented and verifiable proof that the Required Maintenance was performed will be required prior to any authorization for repairs. If Customer fails to provide any requested documents within this time period, Authorized Administrator may deny the claim.

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5. All diagnostic information and/or anything requested by the Authorized Administrator must be provided within 15 days of reporting the claim. If neither the customer nor the service center/repair facility submits the required information to the Authorized Administrator within this time period, the Authorized Administrator may deny the claim. Required diagnostic information:

i) Estimates (including detailed cause of failure, failed components, and detailed list of required parts and labor costs),

ii) A recent time-stamped ECM fault code history report (must include current ESN/VIN and show first & last occurrences of active/inactive codes prior to clearing history for diagnostics). Clearing history for diagnostics before reporting active/inactive fault codes to the Authorized Administrator will result in denial of a claim.

iii) Pictures of failed components.

iv) Picture(s) of corresponding NFPA tag(s) (if applicable), current odometer and ECM miles/km/hours, and/or anything requested by the Authorized Claims Administrator.

6. Allow the Authorized Administrator to examine/inspect the vehicle, if requested.

7. Final decisions regarding the initial cause of failure are determined by the Authorized Administrator.

8. Claims are paid directly to the service center/repair facility only.

9. Upon completion of authorized repairs, service center/repair facility must provide confirmation of road test, and submit part/labor warranty information, verification of payment for non-covered balance, and final invoice. This information must be received, and all monies paid prior to release of the vehicle.

10. Vehicles sold by a Broker (See definitions #4) are subject to a mandatory 30-day waiting period from the date of purchase before any claim can be initiated.

I. **HOW THIS AGREEMENT IS CANCELLED OR VOIDED:**

1. Authorized Administrator may void this Agreement for (a) non-payment or return of any charge when due, (b) misrepresentation by Customer entering into this Agreement, (c) submission of a fraudulent claim, (d) failure to comply with all the Agreement Terms and Conditions, or (e) transfer by Customer without Authorized Administrator's consent (see section B). Failure to act when required will void this Agreement as of the date any requirement was due and not performed. Once voided, the Agreement rights and privileges are forfeited including the validation of any claim and the right to any refund.

2. In the event Customer elects to cancel this Agreement, no refund of the purchase price is available to the customer. If there is an extenuating circumstance(s), contact Customer Service at (888) 318-3472.

3. The lien holder may cancel this Agreement for non-payment, repossession, or total loss. A written request for cancellation and documentation verifying the event must be received within (30) days of the cancelable event.

4. A pro-rated refund will ONLY be considered in a total loss situation. If a pro-rated refund is available, proof of total loss will be required within thirty (30) days of the total loss event. In the case of a lien holder cancellation, the lien holder will be named on the pro-rated refund check. Authorized Administrator will refund a pro-rated portion of the Agreement charge Authorized Administrator received less an Administration Fee and the percentage for the number of days in force from the Agreement Date. Authorized Administrator will also deduct a claims administration fee per processed claim(s) and the amount Authorized Administrator contributed toward any paid claim(s).

J. **DISPUTE RESOLUTION:** This Agreement shall be governed by and in accordance with the laws of the State of North Carolina, USA without regard to conflict of law principles. In the event of any dispute between parties arising out of or related to this Agreement in any way, including for breach of this Agreement, the dispute shall be settled by arbitration administered by the American Arbitration Association (AAA). Either party may submit a Demand for Arbitration to the AAA. Arbitration is the sole method of dispute resolution between parties for arbitrable claims. Arbitration shall be administered in accordance with AAA's Commercial Arbitration Rules. Unless prohibited by law, either party's Demand for Arbitration must be submitted within 90 days of when a claim or any portion of the claim is denied, or 90 days from any other conduct on which the dispute is based. An arbitration demand is made by sending the Demand for Arbitration to AAA, with a copy to the other party. The arbitration will be heard by a single arbitrator selected by AAA. The arbitrator shall have the power to rule on his or her own jurisdiction, including any objections with respect to the existence, scope, or validity of the arbitration agreement or the arbitrability of any claim or counterclaim. THE PARTIES WAIVE THEIR RIGHT TO A JURY TRIAL AND WAIVE ALL RIGHTS TO SERVE AS A CLASS REPRESENTATIVE OR RECEIVE ANY PART OF A CLASS RECOVERY. Each of the parties will pay equally all arbitration fees and arbitrator compensation. The in-person arbitration hearing will take place only in Mecklenburg County, North Carolina, USA unless both parties agree in writing to a different hearing location. A decision from the arbitrator(s) will be binding and final. The determination and award of the arbitrator(s) may be filed by the prevailing party in a court of proper jurisdiction and shall thereafter have the full force and effect of a judgment at law. This arbitration provision contains mutual benefits and is binding upon all parties, their successors, and assigns. This arbitration provision will survive bankruptcy and will survive any termination, amendment, expiration, or performance of this Agreement. If any portion of this arbitration provision is held invalid, the remainder shall remain in effect. The parties agree that any action, suit, or proceeding arising out of or related to this Agreement in any way, not submitted to arbitration, shall be instituted only in the state or federal courts located in Mecklenburg County, North Carolina, USA.

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K. **WHAT IS NOT COVERED: This Agreement does not cover and shall not be liable for:**

1. Damage resulting from the failures of related components but not limited to actuators; bolts; charge air cooler duct work; clamps; connectors; EGR valves linkages; electronic control devices; external fittings; external oil coolers and lines; fasteners; hydraulic clutch master; jake brakes; linkage; manual or automatic transmission clutch-disc(s); Mechatronic Transmission Module (MTM); mounts; oil, fuel or coolant lines; pressure plate; radiators; seals and gaskets; shift levers; slave cylinder(s); sliding clutch(es); thermostat; and throw out or pilot bearing; vacuum controls; VPod and waste gates are not covered.

i) Any malfunction, damage, or wear caused by faulty installation, misapplication, abrasion, inadequate or improper maintenance, negligence, tampering, or substitution of component parts.

ii) The improper design, manufacture, installation, operation, or maintenance of structures. The use of improper accessories, equipment, or materials not approved by OEM.

iii) Component malfunction due to contamination or corrosion. Component malfunction due to wear and tear, excessive oil consumption, loss of compression, overheating, and/or the gradual reduction in operating performance are not covered. Components deemed “out of service” due to expiration are not covered.

iv) A vehicle if it has a salvage title.

v) Shop materials or hazardous waste disposal charges or costs covered by any warranty of the manufacturer.

vi) State required dealer warranty, a repairer's guarantee, or costs incurred to improve operating performance if the components are within the manufacturer's tolerance or specification. This includes but is not limited to manufacturer or aftermarket upgrades or design changes, valve and ring repairs designed to improve engine compression, reduce oil consumption, or to remove sludge or carbon deposits, and improvements for diminished performance.

vii) Failure caused by or involving modification(s) or alteration(s) made to the vehicle that was not performed by the Original Equipment Manufacturer or authorized dealer. Examples include but are not limited to: emission control, exhaust system, and engine modifications.

viii) Continued operation of an impaired vehicle. An estimate will be required by the Authorized Administrator and any coverage, if applicable, will be limited to the initial failed component. Part(s) only. No progressive damage will be covered. No progressive damage for additional undiagnosed or related failures.

ix) Operating the vehicle without proper levels of fluids, lubricants or coolants, or using improper or contaminated fluids.

x) Failure of a non-covered part; Failure caused by non-covered parts.

xi) Failure caused by corrosion, rust, dirt, dust, or debris.

xii) Any loss or breakdown resulting from racing or other competitive driving, operator error, accident/collision, fire, theft, vandalism, riot, war, lightning, earthquake, windstorm, hail, water, freezing, flood, salt, environmental damage, or Acts of God is not covered.

xiii) Incidental or consequential loss or damage, loss of time and use, inconvenience, profits or wages, towing expense, lodging, meals, and storage resulting from a breakdown.

xiv) Any liability or property damage, injury or death of any person, punitive or exemplary damage, and/or attorney fees arising out of the operation or use of the vehicle.

xv) If the odometer or ECM has been stopped, altered, or misrepresents the vehicle's actual miles/km/hours. Factory ECM parameters, codes, warning systems, and alarms cannot be altered and must be in working order at all times while this Agreement is in effect.

xvi) Abuse, misuse, spin-out, shock load, over-rev, overloading or failures resulting from vibration. Hauling that exceeds the manufacturer’s recommendations for the vehicle.

xvii) A pre-existing breakdown, failure, or an improper prior repair whether performed prior to purchase or sale date. These conditions may not have been known to the parties at time of vehicle sale.

1. Claims started within 30 days of the agreement start date of vehicles sold by a Broker.

xviii) Unverified failures or repairs quoted as recommendations.

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L. DEFINITIONS/ Common Terms: As used in this Agreement:

1. "AGREEMENT" means this Equipment Repair Program that You have purchased to protect Your Vehicle.
2. "AUTHORIZED ADMINISTRATOR" means the issuer and obligor of this Agreement.
3. "BREAKDOWN" means the failure of any original or replacement part covered by this Agreement originally designed to work in normal service with proper maintenance as recommended by the OEM and mandated by this Agreement. The claim's duration starts after the claim is initiated and includes all diagnostic after a vehicle arrives at a repair facility. All requested diagnostic information must be provided within the outlined deadline during the claim, this includes any additional repairs found until the vehicle is in working order.
4. "BROKER" An intermediary who assists in the sale of the emergency vehicle but never physically takes possession of the vehicle between the previous owner and the future owner.
5. "COSTS" The price of replacement parts shall not exceed the OEM's suggested retail price for parts or the national average cost of the part. Replacement parts will be the same quality as the covered parts and may include new, remanufactured, or used parts with the Authorized Administrator's approval. Labor allowances are derived from nationally recognized labor time schedules.
6. "ECM" As requested in section xi. 2 and xii. 2 for the claims procedure, is the expanded fault code report required for review for all claims, regardless of failure. The manufacturers specific fault code report including the first and last occurrences for each code. Clearing history for diagnostics before reporting active/inactive fault codes to the Authorized Administrator may result in denial of the claim.
7. "LIMITS OF LIABILITY" is the most We will pay regardless of the number of times a given part, component, group of components or engine needs to be repaired or replaced.
8. "NON-COVERED COMPONENT" means any component not covered by this Agreement.
9. "OEM" and "Original Equipment Manufacturer" is the company who manufactured a component and whose label, model number and serial number are on the component.
10. "PROGRESSIVE DAMAGE" (Consequential damage) refers to damage caused by the failure of one component (the "Cause of failure") which causes another component to fail (the "SECONDARY FAILURE"). Progressive Damage is limited by Section E.
11. "REPAIR FACILITY" is a dealership or repair facility with Automotive Service Excellence (ASE) or equivalent certification, an active business license, a facility that is open to the public, is able to provide the required engine specific fault code report, and accepts our Equipment Repair Program.
12. "VEHICLE" means the covered vehicle described in Section I of the Agreement.
13. "VERIFICATION OF FAILURE" is test results, measurements, readings, videos, or filled out troubleshooting guides used to verify the failure, validating the required replacement of a component.
14. "WEAR-OUT" means the inability of a component to perform its intended function within the operating parameters defined by the manufacturer as a result of repetitive action of the component over time under normal and expected operating conditions. In order for a component to be considered a "Wear-out," the component may not have been used for any purpose other than the intended purpose of its design and manufacture during the entire period of the component's use and operation.
15. "YOU" and "YOUR" mean the Customer shown in Section I of the Agreement.

Obligations under this Equipment Repair Program are insured under a contractual liability insurance policy issued by biBERK Insurance Services, a subsidiary of A++ A.M. Best rated Berkshire Hathaway Insurance Group. If the Obligor fails to pay or provide service on a claim within sixty (60) days after proof of loss has been filed, You are entitled to make a claim directly against the insurer, biBERK Insurances Services, 1314 Douglas St STE 1400 Omaha, NE, 68102, US.

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